

23STCV05240 23STCV05240

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-10

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In preparing for the final status conference this morning, the Court observed the following:

1. Mr. Cole still has not filed a substitution of attorney to show that he is counsel of record for the Pedram Defendants in Blumenfeld v. Mason. Mr. Cole has substituted in only as to the related case, 732 N.Vista LLC v. Blumenfeld.
2. At the last hearing, Mr. Cole stated that the Pedram Defendants may dismiss their Cross-Complaint in Blumenfeld v. Mason and that 732 N. Vista LLC may dismiss the related case. No dismissals have been filed. Will there be?
3. The exhibit list that the parties submitted last October in Blumenfeld v. Mason shows many disputes over admissibility. The Court will need to work with the parties to resolve the disputes as best we can prior to the trial. This disputes are in addition to the disputes over exhibits that are the subject of Pedram's request for an Evidence Code section 402 hearing about certain documents that he would like to have admitted at trial.
4. The Pedram Defendants have not filed proposed jury instructions. Only Plaintiff has done so.
5. Neither side has filed a joint statement of the case.
6. The joint witness list that the parties submitted last October has a time estimate of 59 hours, which is roughly 13 days (the Court generally is available for trial 4.5 hours per day) not including jury selection. It should not take 3 weeks for the trial in this case.

The Court will inquire of the FSC whether a mandatory settlement conference with a bench officer is still something that the parties are considering.